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Case Number: 25STCV09632 Hearing Date: July 21, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

JACK CHENG,

Plaintiff,

vs.

CHUNCHAO
ZHOU, et al.,

Defendants.

Case No.:

25STCV09632

Hearing Date:

July 21, 2026

Hearing Time:

10:00

a.m.

[TENTATIVE] ORDER

RE:

PLAINTIFF JACK

CHENG'S MOTION TO COMPEL FURTHER RESPONSES FROM YI & YI CO. LTD TO
REQUEST FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR MONETARY SANCTIONS

Background

Plaintiff Jack Cheng, an individual, doing business as Law Offices of Cheng & Associates, filed this action on April 1, 2025, against Defendants Chunchao Zhou ("Zhou") and Yi and Yi Co. Ltd. ("Yi & Yi") (jointly, "Defendants"). The complaint alleges twelve causes of action for (1) defamation per se; (2) libel; (3) libel per se; (4) civil harassment – CCP § 527.6; (5) account stated; (6) violation of Civil Code § 1719 – dishonored check; (7) fraud – tendered and cancelled check; (8) rescission; (9) intentional infliction of emotional distress; (10) injunctive relief; (11) trade libel; and (12) invasion of privacy.

Plaintiff Jack Cheng ("Plaintiff") now moves for an order compelling Yi & Yi to provide further verified responses, without objection, and to produce all documents responsive to Plaintiff's request for production of documents, Nos. 1, 4, 6-22 and 31. Plaintiff also moves for sanctions in the amount of \$5,460.00. Zhou filed an opposition on behalf of Yi & Yi. Plaintiff replied.

Legal Standard

Code of

Civil Procedure section 2031.310, subdivision (a) provides that "[o]n receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) “An objection in the response is without merit or too general.” A motion under subdivision (a) shall “set forth specific facts showing good cause justifying the discovery sought by the demand,” and “shall be accompanied by a meet and confer declaration...” (Code Civ. Proc., § 2031.310, subd. (b).)

“To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224 (disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531).) If a timely motion to compel is filed, the burden is on the responding party to justify any objection or failure to fully answer. (Coy v. Superior Court of Contra Costa County (1962) 58 Cal.2d 210, 220-221 [when discussing a motion to compel interrogatories, the court stated that the moving party “had the burden of showing facts from which the trial court might find that the interrogatories were interposed for improper purposes.”].)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Code of Civil Procedure section 2031.310 subdivision (h) states that “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Discussion

A. Procedural Issues

As a preliminary matter, the Court notes that Zhou filed an opposition to the instant motion, even though the motion is against Yi & Yi. However, this is improper. “A corporation has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. [Citation.] However, under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate

officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” ((CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.)

Plaintiff discusses this in his reply papers, asserting that “[t]here appears to be a problem with Zhou’s acceptance that he and Yi & Yi are legally different (which in part is the basis for the alter ego claims in this case). This is not the first time he has filed papers or served discovery responses in his own name when a response was due from Yi & Yi. Once could be a misunderstanding. But the repetitive nature of this, even when advised by Plaintiff’s counsel and this Court that Zhou cannot act on behalf of Yi & Yi, demonstrate willful disregard for the law.” (Reply, 2:16-20.) “Accordingly, Plaintiff requests that this Court strike and disregard the Opposition filed on June 22, 2026 by Zhou.” (Reply, 2:25-26.)

Under Code of Civil Procedure section 436, subdivision (b), the Court has the power to “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state.” Given that Zhou’s opposition to the instant motion is not allowed under the law, the Court strikes the opposition.

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B. Requests for Production

Plaintiff moves for an order compelling Yi & Yi to provide further responses, without objections, to his requests for production of documents and to produce all documents responsive to Nos. 1, 4, 6-22 and 31.

On September 3, 2025, Plaintiff’s counsel “served Plaintiff’s Requests for Production of Documents, Set One, on Defendant Yi & Yi.” (Marchetti Decl., ¶ 3; Ex. A.) Plaintiff’s counsel attests that Yi & Yi “served written responses to the Requests for Production. Although Defendant nominally responded, the responses were substantively defective. The responses consisted largely of boilerplate objections, conclusory statements of nonproduction,

improper assertions of privilege, and refusals to produce documents despite admissions that responsive documents exist,” which “failed to comply with the statutory requirements of Code of Civil Procedure sections 2031.210 through 2031.240. In numerous instances, Defendant failed to provide a complete statement of compliance under section 2031.220, failed to provide a legally sufficient statement of inability to comply under section 2031.230, and failed to support privilege objections with the factual showing or privilege log required by section 2031.240(c).” (Marchetti Decl., ¶¶ 4-5; Ex. B.)

On October 22, 2025, Counsel sent a detailed meet and confer to Yi & Yi, “identifying the specific defects in Defendant’s responses, citing the applicable statutory provisions, and requesting that Defendant serve verified, code-compliant further responses and produce responsive documents,” but “[d]espite these efforts, Defendant failed and refused to cure the deficiencies. Defendant did not withdraw its improper objections, did not provide meaningful supplemental responses, and did not produce the documents demanded.” (Marchetti Decl., ¶¶ 6, 8; Ex. C.) Plaintiff’s counsel explains that “[o]n December 2, 2026, Yi & Yi’s attorney Howard Gan acknowledged that further responses were due, but advised that he was not receiving cooperation from his client such that he lacked the ability to provide further responses and that was part of the reason he was moving to be relieved as counsel for Yi & Yi. He agreed to extend the deadline for a motion to compel further responses to February 28, 2026.” (Marchetti Decl., ¶ 9; Exs. B-C.) Counsel states that “[a]fter Mr. Gan was relieved from further representing Yi & Yi, on February 5, 2026, I sent a letter directly to Yi & Yi about the failure to respond to discovery... As of the filing of this motion nearly three weeks later, there have still been no responses and no promise to respond.” (Marchetti Decl., ¶ 10; Ex. D.) In Plaintiff’s reply papers filed on July 14, 2026, Plaintiff again confirmed that “[n]o further responses nor responsive documents have been received and all issues identified in the moving papers remain unaddressed and outstanding.” (Reply, 2:27-28.)

In support of the instant motion, Plaintiff asserts, “[i]n multiple instances, Defendant has claimed inability to comply without providing the statutorily required showing of a diligent search. In others, Defendant has invoked constitutional privacy protections that do not apply to corporate entities and has asserted an accountant-client privilege that does not exist under California law.” (Mot., 3:14-17.)

Code of Civil Procedure section

2031.240 outlines the

procedure for objecting to a request for production of documents, namely: “(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category. (b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following: (1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made. (2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product..., that claim shall be expressly asserted. (c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.”

Plaintiff first asserts that Yi & Yi’s “[b]lanket objections are not merely insufficient—they are invalid. The Court should strike them and order substantive responses.” (Mot., 5:14-15.)

Plaintiff also contends that the relevance objections are unreasonable because “Defendant repeatedly declares that entire categories of documents—tax records, payroll records, financial transfers, import documentation, and communications—are ‘irrelevant.’ That position reflects a fundamental misunderstanding of California discovery law. However, these documents are directly relevant to the issues in this case. Zhou’s publications include allegedly destroyed his importing business, Yi & Yi and forced him to shut down his company. Those statements were not casual remarks; they were central to Zhou’s public narrative that Plaintiff caused him financial devastation. Accordingly, the discovery requests at issue go directly to the core elements of falsity and damages in this defamation action.” (Mot., 5:18-25.)

Plaintiff further explains that “[w]here a defendant affirmatively claims that his business was harmed or destroyed as a result of a plaintiff’s conduct, financial records, tax returns, banking records, customer records, and

operational documents are not peripheral — they are central evidence.” (Mot., 5:27-6:2.) Plaintiff specifically outlines that the discovery is not speculative, not harassing, and not overbroad, because “[i]t goes to: 1. The falsity of Zhou’s statements that Plaintiff destroyed his business; 2. The falsity of his claim that he was coerced into settlement; 3. The truth or falsity of his self-characterization as financially destitute; 4. His motive and intent in publishing defamatory statements; and 5. Evidence supporting actual malice and punitive damages.” (Mot., 7:13-18.)

Plaintiff also points out Yi & Yi’s “categorical reliance on ‘privacy’ to avoid production of corporate records,” asserting that this is “legally indefensible,” because privacy under the California Constitution is not absolute and “[w]holesale refusal to produce documents is not an appropriate response.” (Mot., 8:15-18.)

Plaintiff also asserts that Yi & Yi’s “refus[al] to produce communications with its CPA and related tax preparation documents on the ground that such communications are ‘protected’ ... is incorrect as a matter of law.” (Mot., 8:20-22.) Plaintiff avers that “[i]nvolving a nonexistent privilege further underscores the lack of substantial justification for Defendant’s objections.” (Mot., 9:1-2.)

Plaintiff also asserts that Yi & Yi fails to comply with Code of Civil Procedure section 2031.230 because “[i]n numerous responses, Defendant asserts that ‘no responsive documents exist’ or that ‘no documents will be produced.’ Yet Defendant provides no description of any search conducted, no identification of custodians consulted, no explanation of systems searched, and no statement as to whether documents ever existed... A conclusory statement that documents do not exist does not satisfy the statute.” (Mot., 9:5-12.)

Lastly, Plaintiff avers that “[p]erhaps most egregiously, Defendant admits that payments were made, communications occurred, checks were issued, and CPA services were retained—yet refuses to produce the underlying documents. Section 2031.220 mandates that when a party agrees to comply, it must produce all responsive documents in its possession, custody, or control. A party cannot simultaneously acknowledge that documents exist and refuse to produce them based on generic objections.” (Mot., 9:16-21.)

Plaintiff's motion "set[s] forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b).) Plaintiff also includes a separate statement with the requests for production, Yi & Yi's objections and denials, and Plaintiff's responses to these. Moreover, the Court reviewed the Separate Statement and finds Yi & Yi's responses deficient. "Where the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient. Likewise, a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.)

For example, request for production No. 12 states: "Produce all DOCUMENTS relating to transfers of money made by Yi & Yi Co. Ltd to the Bank. of China or to Guangzhou Yi & Yi Leather Co., Ltd. from 2021 through 2023." (Sep. Statement, 13:17-18.) Yi & Yi's response says "Defendants reiterate and incorporate their General Objections. This request seeks information concerning international fund transfers, bank accounts, and commercial trade secrets, all of which constitute highly sensitive financial and privacy-protected information under the California Constitution and applicable privacy laws. Moreover, the request has no relevance to the defamation claims at issue, is outside the scope of permissible discovery, and constitutes improper harassment and an overreaching inquiry into unrelated corporate matters. Accordingly, Defendants will not produce any documents in response to this request." (Sep. Statement, 13:21-27.) The Court finds that this answer is representative of the other discovery responses by Yi & Yi. Given that Yi & Yi failed to give proper responses and did not produce any responsive documents, Yi & Yi is not in compliance with Code of Civil Procedure section 2031.240, and the motion to compel further responses is necessary. Plaintiff demonstrates good cause because not only does he highlight the deficiency of Yi & Yi's responses, but he also explains to the Court why the information sought by Yi & Yi is directly relevant to his case. Plaintiff underscores the importance of obtaining financial records and information from Yi & Yi because the requests directly relate to defamatory statements made about him. For request No. 12, Plaintiff asserts that production is necessary because, inter alia, "[i]f Zhou was wiring millions of dollars abroad to accounts under his exclusive control while simultaneously publishing statements that he was financially devastated and forced into settlement due to lack of resources, that contradiction is powerful evidence of falsity. It demonstrates not merely inaccuracy but knowledge of falsity or reckless disregard for the truth—hallmarks of actual malice in a defamation case." (Sep. Statement, 14:18-22.)

Based on the foregoing, and in light of the lack of opposition, Plaintiff demonstrates that his requests are relevant to the issues raised in the complaint and to the claims Yi & Yi placed at issue in the case. Plaintiff shows a need for further responses because Yi & Yi either provides improper objections or does not produce relevant documents. Accordingly, the Court grants Plaintiff's request to compel further responses, without objection except that the objection to tax returns and tax preparation documents is sustained and the Court does not compel production of such documents. Otherwise, Yi & Yi is ordered to produce all other documents responsive to Plaintiff's request for production of documents.

C.

Sanctions

Plaintiff seeks sanctions in the amount of \$5,460.00. Plaintiff asserts that "[u]nder section 2031.310(h), the Court shall impose monetary sanctions unless the party acted with substantial justification. Defendant's positions directly contradict settled California law. There is no substantial justification. The objections are legally inapplicable. The blanket objections are invalid. The privilege assertions are unsupported. The inability statements are deficient. Sanctions are mandatory." (Mot., 10:9-13.)

Plaintiff's counsel explains his hourly rate is \$600 and that he "spent over seven hours drafting, and filing this motion along with the accompanying Separate Statement. I anticipate spending an additional hour on any reply briefing and an additional hour preparing for and attending the hearing on this motion. Thus, I anticipate that I will spend at least nine hours related to this motion. Additionally, the filing fee to be paid for this motion is \$60. I am accordingly requesting a total of \$5,460 (\$600 x 9 hours + 60) in monetary sanctions related to this motion." (Marchetti Decl., ¶¶ 16, 18.) The Court finds the request reasonable. Accordingly, sanctions are imposed in the total amount of \$5,460.

Conclusion

Based on the foregoing, Plaintiff's motion to compel further verified responses, without objection, and to produce all documents responsive to Plaintiff's request for production of documents is GRANTED except as to the tax returns and tax

preparation documents. Plaintiff's request for sanctions is GRANTED in the amount of \$5,460. Yi & Yi is ordered to provide the further verified responses and to produce the documents described above that are responsive to Plaintiff's request for production of documents, Nos. 1, 4, 6-22 and 31, within 20 days of the date of this Order. Yi & Yi is further ordered to pay monetary sanctions in the amount of \$5,460 to Plaintiff within 20 days of the date of this Order.

Plaintiff is ordered to provide notice of this Order.

DATED: July
21, 2026 _____

Hon.

Teresa A. Beaudet

Judge, Los Angeles Superior Court